

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1684

By: Frix of the Senate

and

Bashore of the House

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9 An Act relating to motor vehicles; amending 27A O.S.
10 2021, Section 2-7-404, which relates to licenses for
11 highway remediation and cleanup services operators;
12 updating statutory reference; requiring certain
13 operators to have certain insurance coverage;
14 updating statutory language; and providing an
15 effective date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 27A O.S. 2021, Section 2-7-404, is
18 amended to read as follows:

19 Section 2-7-404. A. To be licensed pursuant to ~~this act~~ the
20 Oklahoma Highway Remediation and Cleanup Services Act, a person,
21 firm, corporation, or other entity shall meet the following
22 requirements:

23 1. Principal business facilities are located within ~~Oklahoma~~
24 this state;

1 2. Tow trucks are registered and licensed in ~~Oklahoma~~ this
2 state; and

3 3. ~~Owner~~ The owner is a resident of ~~the State of Oklahoma~~ this
4 state or the service is an Oklahoma corporation.

5 B. No operator or employee of any operator shall be permitted,
6 allowed, or caused to solicit business or engage in highway
7 remediation and cleanup services without the operator first having
8 obtained from the Department of Environmental Quality a license to
9 operate a highway remediation and cleanup service. The license
10 number shall be displayed, in conformance with rules of the
11 Department, on both sides of every vehicle operated by the highway
12 remediation and cleanup service. This section shall not apply to
13 the ~~Oklahoma~~ Department of Transportation or the Oklahoma Turnpike
14 Authority.

15 C. The license fee required by this section shall be in lieu of
16 the motor carrier filing fee as required in Section 165 of Title 47
17 of the Oklahoma Statutes. It shall not be necessary for any
18 operator to prove public convenience and necessity to obtain such
19 license, and the Department shall issue such license without public
20 hearing. The fee for such license shall be Ten Thousand Dollars
21 (\$10,000.00).

22 D. All licenses shall expire on the last day of the calendar
23 year and may be renewed annually at a cost of One Thousand Dollars
24 (\$1,000.00) upon application to the Department as prescribed by

1 rule. No license fee shall be refunded in the event that the
2 license is suspended or revoked.

3 E. No operator or employee of any operator shall be permitted,
4 allowed, or caused to solicit business or engage in highway
5 remediation and cleanup services without the operator first having
6 obtained at least Three Million Dollars (\$3,000,000.00) of liability
7 insurance coverage. Proof of such coverage shall be submitted to
8 the Department of Environmental Quality at the time of the
9 application for a license or renewal of such license.

10 F. The Department is authorized to issue notices of violation
11 and compliance orders and to suspend, revoke, or refuse to issue or
12 renew the license of an operator when it finds the licensee or
13 applicant has not complied with or has violated any of the
14 provisions of ~~this act~~ the Oklahoma Highway Remediation and Cleanup
15 Services Act, or any rules adopted by the Board. A suspension shall
16 be for a period of time deemed appropriate by the Department for the
17 violation. An operator whose license has been revoked may not apply
18 for one (1) year. Any suspended or revoked license shall be
19 returned to the Department by the operator. An operator whose
20 license is revoked by the Department shall be required to pay an
21 additional fee of Ten Thousand Dollars (\$10,000.00) for
22 reinstatement if such reinstatement is authorized by the Department.

23 ~~F.~~ G. The Department shall keep a current list of highway
24 remediation and cleanup service operators licensed pursuant to ~~this~~

1 ~~act~~ the Oklahoma Highway Remediation and Cleanup Services Act and
2 forward such list to the Department of Public Safety for
3 distribution to wrecker service operators licensed by the Department
4 of Public Safety. The Department of Environmental Quality shall
5 update such list regularly to delete highway remediation and cleanup
6 service operators whose licenses have been suspended or revoked.

7 ~~G.~~ H. Fees or fines collected pursuant to the provisions of
8 this section shall be remitted to the State Treasurer to be
9 deposited in the Department of Environmental Quality Revolving Fund.

10 SECTION 2. This act shall become effective November 1, 2026.

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12 COMMITTEE REPORT BY: COMMITTEE ON COMMERCE AND ECONOMIC DEVELOPMENT
13 OVERSIGHT, dated 04/14/2026 - DO PASS.
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